MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (this "Agreement") is entered into as of the Effective Date set forth below, by and between Nexora Solutions and BrightPath Consulting.

This Mutual Non-Disclosure Agreement (the "Agreement") is made and entered into as of _____, 20____ (the "Effective Date"), by and between **Nexora Solutions**, a corporation with its principal place of business at 4820 Meridian Parkway, Suite 300, Wilmington, Delaware, 19801 ("Nexora Solutions"), and **BrightPath Consulting**, a corporation with its principal place of business at 112 Harborview Drive, Suite 210, Wilmington, Delaware, 19801 ("BrightPath Consulting"). Nexora Solutions and BrightPath Consulting are each referred to herein individually as a "Party" and collectively as the "Parties."

WHEREAS, the Parties wish to explore a potential business relationship (the "Purpose"), and in connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information; and

WHEREAS, the Parties desire to protect the confidentiality of such information in accordance with the terms of this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the Parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all non-public, proprietary, or confidential information disclosed by either Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether disclosed orally, in writing, electronically, visually, or in any other form, and whether or not marked or identified as confidential, including but not limited to: business plans, financial information, customer and vendor lists, pricing, marketing strategies, trade secrets, software, source code, technical specifications, product designs, research and development data, employee information, and any other information that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure.

1.2 Confidential Information also includes the existence, status, and terms of this Agreement and the fact that discussions or negotiations are taking place between the Parties.

2. OBLIGATIONS OF RECEIVING PARTY

2.1 The Receiving Party shall hold the Disclosing Party's Confidential Information in strict confidence and shall not disclose such Confidential Information to any third party without the prior written consent of the Disclosing Party.

2.2 The Receiving Party shall use the Confidential Information solely for purposes of evaluating, pursuing, or performing the Purpose, and for no other purpose whatsoever.

2.3 The Receiving Party shall protect the Confidential Information using the same degree of care it uses to protect its own confidential information of like nature, but in no event less than a reasonable degree of care.

2.4 The Receiving Party may disclose Confidential Information to its employees, officers, directors, agents, and professional advisors who have a legitimate need to know such information for purposes of the Purpose, provided that such persons are bound by confidentiality obligations at least as restrictive as those set forth in this Agreement, and the Receiving Party remains fully responsible for any breach of this Agreement by such persons.

2.5 If the Receiving Party is required by law, regulation, or court order to disclose any Confidential Information, it shall, to the extent legally permissible, provide the Disclosing Party with prompt prior written notice of such requirement so that the Disclosing Party may seek a protective order or other appropriate remedy.

3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The obligations set forth in Section 2 shall not apply to information that the Receiving Party can demonstrate by competent written evidence:

3.1 was already known to the Receiving Party, without restriction, prior to disclosure by the Disclosing Party;

3.2 is or becomes generally available to the public through no act or omission of the Receiving Party;

3.3 is rightfully obtained by the Receiving Party from a third party without restriction and without breach of any obligation of confidentiality;

3.4 is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; or

3.5 is disclosed with the prior written approval of the Disclosing Party.

4. TERM AND TERMINATION

4.1 This Agreement shall commence on the Effective Date and shall remain in effect for a period of two (2) years, unless earlier terminated by either Party upon thirty (30) days' prior written notice to the other Party.

4.2 Termination of this Agreement shall not relieve either Party of its obligations with respect to Confidential Information disclosed prior to the effective date of termination. The confidentiality obligations set forth in Section 2 shall survive termination or expiration of this Agreement for a period of three (3) years thereafter, except with respect to any Confidential Information that constitutes a trade secret under applicable law, for which such obligations shall survive for as long as such information remains a trade secret.

5. RETURN OF MATERIALS

5.1 Upon the earlier of (a) the termination or expiration of this Agreement, or (b) the written request of the Disclosing Party, the Receiving Party shall promptly, and in no event later than ten (10) business days after such event, return to the Disclosing Party or destroy all documents, materials, and other tangible or electronic embodiments of Confidential Information, including all copies, notes, summaries, and extracts thereof.

5.2 Upon the Disclosing Party's request, the Receiving Party shall certify in writing that it has complied with the requirements of this Section 5, provided that the Receiving Party may retain one archival copy of Confidential Information solely for the purpose of monitoring its compliance with this Agreement, subject to the confidentiality obligations herein continuing to apply to such retained copy.

6. GOVERNING LAW

6.1 This Agreement shall be governed by, and construed in accordance with, the laws of the State of Delaware, without regard to its conflict of laws principles.

6.2 Each Party irrevocably submits to the exclusive jurisdiction of the state and federal courts located in the State of Delaware for the resolution of any dispute arising out of or relating to this Agreement.

7. MISCELLANEOUS

7.1 **No License.** Nothing in this Agreement shall be construed as granting any rights, by license or otherwise, to any Confidential Information disclosed hereunder, except as expressly set forth in this Agreement.

7.2 **No Obligation.** Nothing in this Agreement shall obligate either Party to disclose any particular information to the other Party or to proceed with the Purpose or any other business relationship.

7.3 **Equitable Relief.** Each Party acknowledges that any breach of this Agreement may cause irreparable harm to the other Party for which monetary damages would be an inadequate remedy, and accordingly, the non-breaching Party shall be entitled to seek injunctive and other equitable relief, in addition to all other remedies available at law or in equity.

7.4 **No Warranty.** All Confidential Information is provided "AS IS." Neither Party makes any representation or warranty, express or implied, as to the accuracy or completeness of any Confidential Information disclosed hereunder.

7.5 **Entire Agreement; Amendment.** This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral. This Agreement may be amended only by a written instrument signed by both Parties.

7.6 **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

7.7 **Assignment.** Neither Party may assign this Agreement, in whole or in part, without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of all or substantially all of its assets.

7.8 **Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Signatures delivered by electronic means shall be deemed valid and binding.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

NEXORA SOLUTIONS

By: _____

Name: _____

Title: _____

Date: _____

BRIGHTPATH CONSULTING

By: _____

Name: _____

Title: _____

Date: _____